

*Secondly*, Where a *purchaser* of property takes a conveyance of the legal estate in the name of a third person, but there is nothing to indicate an intention of not appropriating to himself the beneficial interest.

trust results to one paying the purchase-money by way of a loan; *Whaley v. Whaley*, 71 Ala. 159; *Gibson v. Foote*, 40 Miss. 788; *White v. Carpenter*, 2 Paige, 217; otherwise if one taking the title should pay the money entirely for the credit of another; *Stucky v. Stucky*, 30 N. J. Eq. 546; *Fleming v. McHale*, 47 Ill. 282.

*Advancements.* — When a purchase is made by one who is legally and morally bound to support the one to whom the title is taken, no trust results, and there is a presumption that the conveyance was a gift or advancement to the nominal purchaser, as a purchase by a husband in the name of his wife; *Whitten v. Whitten*, 3 Cush. 194; *Creswell v. Jones*, 68 Ala. 420; *Bennett v. Camp*, 54 Vt. 36; *Spring v. Hight*, 22 Me. 408; *Fatherce v. Fletcher*, 31 Miss. 265; *Guthrie v. Gardner*, 19 Wend. 414; *Maxwell v. Maxwell*, 109 Ill. 588; see also *Mosely v. Mosely*, 87 N. C. 69; *Meredith v. Bank*, 92 Ind. 343; a father in the name of his son unprovided for; *Ford v. Ellingwood*, 3 Met. Ky. 359; *Stanley v. Brannon*, 6 Blakf. 195; *Dudley v. Bosworth*, 10 Humph. 12; 51 Am. Dec. 690; *Douglass v. Brice*, 4 Rich. Eq. 322; *Wheeler v. Kidder*, 105 Pa. St. 270; *James v. James*, 41 Ark. 301; *McGinnis v. Edgell*, 39 Ia. 419; *Read v. Huff*, 40 N. J. Eq. 229; *Harden v. Darwin*, 66 Ala. 55; *Buren v. Buren*, 79 Mo. 538; in the name of daughter; *Eastham v. Roundtree*, 56 Tex. 110; *Murphy v. Nathans*, 46 Pa. St. 508; or adopted daughter; *Astreen v. Flanagan*, 3 Edw. Ch. 279; likewise if purchase is made in the name of wife and others; *Stevens v. Stevens*, 70 Me. 92; *Cormerais v. Wesselhoft*, 114 Mass. 550; *Seibold v. Christman*, 75 Mo. 308; *Jencks v. Alexander*, 11 Paige, 619; *Johnson v. Johnson*, 16 Minn. 512; also if the one paying the consideration stands *in loco parentis* to the nominal purchaser, as father and son-in-law; *Baker v. Leathers*, 3 Ind. 558; *Thompson v. Thompson*, 18 Ohio St. 73; father and illegitimate son; *Beckford v. Beckford*, Loft, 490; brother and sister; *Higdon v. Higdon*, 57 Miss. 264; uncle and nephew; *Jackson v. Feller*, 2 Wend. 465; husband and wife's nephew; *Currant v. Jago*, 1 Coll. 261; but the rule does not apply to more distant relatives; *Tucker v. Burrow*, 2 Hem. & M. 515; *Powys v. Mansfield*, 3 Myl. & Cr. 359; one claiming an advancement must prove it; *Kluender v. Fenske*, 53 Wis. 118; this presumption of an advancement may be rebutted by evidence showing the intent of the real purchaser to secure a trust for himself; *Shepherd v. White*, 10 Tex. 72; *Cotton v. Wood*, 25 Iowa, 43; *Jackson v. Matsdorf*, 11 Johns. 96; 6 Am. Dec. 355; *Proseus v. McIntyre*, 5 Barb. 432; *Hodgson v. Macy*, 8 Ind. 121; *Butler v. M. Ins. Co.* 14 Ala. 788; *Reed v. Huff*, 40 N. J. Eq. 229; *Seibold v. Christman*, 75 Mo. 308.

*Conveyance of legal title only.* — In this case the equitable title will result to the settlor, his heirs, executors, or administrators; *Hogan v. Strayhorn*, 65 N. C. 279; *Barnes v. Taylor*, 27 N. J. Eq. 265; *Tipton v. Powell*, 2 Cold. 19; *Gibson v. Armstrong*, 7 B. Mon. 481.

*Trust as to part only.* — Where by will a trust is declared in a part only of an estate, or the purposes of the trust do not exhaust the beneficial interest, a trust in the remainder will result to the grantor, his heirs or representatives; 2 Story Eq. Jur. § 1199; 1 Perry on Trusts, § 152; *Loring v. Eliot*, 16 Gray, 568; *Kennedy v. Nunan*, 52 Cal. 326; *Hogan v. Jaques*, 19 N. J. Eq. 123; *McCollister v. Willey*, 52 Ind. 382; there is a distinction between property